



CGHC010306602026



2026:CGHC:35033

NAFR

HIGH COURT OF CHHATTISGARH AT BILASPUR

MCRC No. 7292 of 2026

- 1 - Hemant Mahanand S/o Arun Mahanand Aged About 28 Years R/o Ward No. 12, Dudukel, Police Station Golamunda, District- Kalahandi, (Odisha)
- 2 - Jayadhar Mahanand S/o Trilochan Mahanand Aged About 23 Years R/o Ward No. 12, Dudukel, Police Station- Golamunda, District- Kalahandi, (Odisha)

... Applicant(s)

versus

- 1 - State of Chhattisgarh Through Police Station Komakhan, District- Mahasamund (C.G.)

... Respondent(s)

|                         |   |                                     |
|-------------------------|---|-------------------------------------|
| For Applicant(s)        | : | Mr. Mayank Kumar, Advocate          |
| For Respondent(s)/State | : | Mr. Shailendra Sharma, Panel Lawyer |

Hon'ble Mr. Ramesh Sinha, Chief Justice

Order on Board

10/08/2026

1. The present is the **first bail application** filed under Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (for short, “BNSS”), seeking grant of regular bail to the Applicants, who have been arrested in

connection with Crime No. 55/2026 registered at Police Station Komakhan, District Mahasamund (C.G.), for the offence punishable under Section 20(b)(ii)(B) of the Narcotic Drugs and Psychotropic Substances Act, 1985.

- 2.** The prosecution story, in brief, is that on 27.04.2026, while the police officials were conducting vehicle checking at Temri Check-Post, they allegedly received secret information that two persons riding a red-coloured TVS Apache motorcycle bearing Registration No. OD-08-G-1028 were transporting Ganja from Odisha towards Chhattisgarh. Acting upon the said information, the police intercepted the motorcycle and apprehended the present Applicants. Upon search of the motorcycle, a yellow printed cloth bag kept on the motorcycle seat was allegedly found, containing two packets of Ganja. The said contraband was seized in accordance with law. Consequently, FIR bearing No. 55/2026 was registered against the Applicants for the offence punishable under Section 20(b)(ii)(B) of the NDPS Act.
- 3.** Learned counsel for the Applicants submits that the Applicants are innocent and have been falsely implicated in the present case. It is further submitted that the applicants have been in judicial custody since 27.04.2026, the investigation has been completed and the charge-sheet has already been filed. It is also submitted that the applicants have no criminal antecedents and the trial is likely to take considerable time for its conclusion. Accordingly, learned counsel for the Applicants prays that the Applicants be enlarged on regular bail.
- 4.** On the other hand, learned State counsel opposes the prayer for grant of regular bail, submitting that, considering the nature and gravity of the

offence and the quantity of contraband seized, the Applicants are not entitled to bail. However, it is submitted that the charge-sheet has been filed and the Applicants have no criminal antecedents. Accordingly, it is prayed that the bail application be rejected.

5. I have heard learned counsel appearing for the parties and perused the case diary.
6. Considering the facts and circumstances of the case, the nature of allegations, the fact that the Applicants have been in judicial custody since 27.04.2026, the investigation has been completed and the charge-sheet has already been filed, coupled with the fact that the Applicants have no criminal antecedents and the trial is likely to take considerable time for its conclusion, this Court is of the considered opinion that the Applicants deserve to be enlarged on regular bail.
7. **Accordingly, the bail application is allowed.** Let the Applicants, namely **Hemant Mahanand** and **Jayadhar Mahanand**, involved in Crime No. 55/2026 registered at Police Station Komakhan, District Mahasamund (C.G.), for the offence punishable under Section 20(b)(ii) (B) of the Narcotic Drugs and Psychotropic Substances Act, 1985, be released on bail upon furnishing **personal bonds** along with **two local sureties** each in the like sum to the satisfaction of the Court concerned, subject to the following conditions:-

(i) The applicants shall file an undertaking to the effect that they shall not seek any adjournment on the dates fixed for evidence when the witnesses are present in court. In case of default of this condition, it shall be

open for the trial court to treat it as abuse of liberty of bail and pass orders in accordance with law.

(ii) The applicants shall remain present before the trial court on each date fixed, either personally or through their counsel. In case of their absence, without sufficient cause, the trial court may proceed against them under Section 269 of Bharatiya Nyaya Sanhita.

(iii) In case, the applicants misuse the liberty of bail during trial and in order to secure their presence, proclamation under Section 84 of BNSS is issued and the applicants fail to appear before the court on the date fixed in such proclamation, then, the trial court shall initiate proceedings against them, in accordance with law, under Section 209 of the Bharatiya Nyaya Sanhita.

(iv) The applicants shall remain present, in person, before the trial court on the dates fixed for (i) opening of the case, (ii) framing of charge and (iii) recording of statement under Section 351 of BNSS. If in the opinion of the trial court absence of the applicants is deliberate or without sufficient cause, then it shall be open for the trial court to treat such default as abuse of liberty of bail and proceed against them in accordance with law.

- 8.** However, this Court hopes and trusts that the trial Court shall make an earnest endeavour to conclude the trial expeditiously from the receipt of this order in accordance with law, if there is no legal impediment.

9. Office is directed to send a certified copy of this order to the trial Court for necessary information and compliance forthwith.

**Sd/-**  
**(Ramesh Sinha)**  
**Chief Justice**

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